

25STCV22375 25STCV22375

County: los-angeles

Division: Civil Law and Motion

Department: 729

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Case Number: 25STCV22375 Hearing Date: August 6, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

SAHIBZADA AASIN AKHTAR,

vs.

SIERRA CANYON SCHOOL.

Case No.: 25STCV22375

Hearing Date: August 6, 2026

Defendant Sierra Canyon School's motion to dismiss pro per Plaintiff Sahibzada Aasin Akhtar's complaint for failure to file a security bond is granted.

Defendant Sierra Canyon School ("SCS") ("Defendant") moves for an order dismissing pro per Plaintiff Sahibzada Aasin Akhtar's ("Akhtar") ("Plaintiff") complaint ("Complaint") on the grounds that Plaintiff failed to post a security bond as ordered by this Court pursuant to C.C.P. §391.4. (Notice Motion, pg. i.)

Background

Plaintiff filed his operative complaint on July 30, 2025, against Defendant. On December 3, 2025, this Court granted in part Defendant's motion to deem Plaintiff a vexatious litigant, granting Defendant's request declare Plaintiff a vexatious litigant and entry of a prefilng order, and denying without prejudice Defendant's request that Plaintiff be required to furnish a security

in this matter. (12/3/25 Hearing on Motion.)

On March 23, 2026, this Court granted Defendant's motion to require Plaintiff to post a bond as a vexatious litigant in the amount of \$19,319.39 within 20 days of the ruling. (3/23/26 Hearing on Motion.)

On May 6, 2026, Defendant filed the instant motion. Plaintiffs filed his opposition on July 21, 2026. As of the date of this hearing no reply has been filed.

Legal Standard

C.C.P. §391.1 provides:

In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.

A motion pursuant to subdivision (a) on the grounds that plaintiff is a vexatious litigant pursuant to paragraph (5) of subdivision (b) of Section 391 may be brought only by a person protected by the restraining order. A person filing a motion as described in this subdivision shall not be required to pay a filing fee.

(C.C.P. §391.1.)

C.C.P. §391.4 provides that "when security that has been ordered furnished is not furnished as ordered, the litigation shall be dismissed as to the defendant for whose benefit it was ordered furnished." (C.C.P. §391.4.)

Discussion

Defendant's motion to dismiss Plaintiff's Complaint is granted. Here, Plaintiff has failed to timely furnish the security ordered by this Court by April 22, 2026. (Decl. of Brown ¶14.) Pursuant to C.C.P. §391.4, dismissal of Plaintiff's Complaint is proper.

Plaintiff's opposition presents arguments that are extraneous to the issue of his failure to post the security. For one, Plaintiff acknowledges that he failed to appear for the hearing on July 15, 2026 regarding his challenge to the underlying order declaring him a vexatious litigant but offers no explanation as to why he did not appear or take the motion off calendar. Nor does Plaintiff present any authority for the premise that paying the security bond precludes his ability to challenge the vexatious litigant ruling.

Accordingly, Defendant's motion is granted.

Conclusion

Defendant's motion to dismiss Plaintiff's Complaint is granted.

Moving Party to give notice.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court